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2nd Session of the 60th Legislature (2026)

ENGROSSED SENATE
BILL NO. 1433

By: Bergstrom and Jett of the
Senate

and

Hall of the House

An Act relating to the Administrative Procedures Act; creating the Guidance Transparency Act; providing short title; amending 75 O.S. 2021, Section 250.3, as last amended by Section 5, Chapter 258, O.S.L. 2025 (75 O.S. Supp. 2025, Section 250.3), which relates to defined terms under the Administrative Procedures Act; defining term; conforming language; amending 75 O.S. 2021, Section 250.4a, which relates to certain exemption under the Administrative Procedures Act; requiring certain agencies to make guidance documents available for public inspection; amending 75 O.S. 2021, Section 250.9, as amended by Section 1, Chapter 7, O.S.L. 2024 (75 O.S. Supp. 2025, Section 250.9), which relates to creation of the Office of Administrative Rules; requiring certain agencies to electronically submit certain guidance documents on certain basis; requiring publication of documents in certain form; requiring documents to include certain information; amending 75 O.S. 2021, Section 302, which relates to duties of rulemaking agencies; requiring agencies to make all guidance documents available for public inspection; updating statutory language; providing for noncodification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law not to be
2 codified in the Oklahoma Statutes reads as follows:

3 This act shall be known and may be cited as the "Guidance
4 Transparency Act".

5 SECTION 2. AMENDATORY 75 O.S. 2021, Section 250.3, as
6 last amended by Section 5, Chapter 258, O.S.L. 2025 (75 O.S. Supp.
7 2025, Section 250.3), is amended to read as follows:

8 Section 250.3. As used in the Administrative Procedures Act:

9 1. "Administrative head" means an official or agency body
10 responsible pursuant to law for issuing final agency orders;

11 2. "Adopted" means a proposed emergency rule which has been
12 approved by the agency but has not been approved or disapproved by
13 the Governor as an emergency rule as provided by Section 253 of this
14 title, or a proposed permanent rule which has been approved by the
15 agency and not disapproved by the Governor pursuant to paragraph 6
16 of subsection A of Section 303 of this title, but has not been
17 finally approved or disapproved by the Legislature or the Governor;

18 3. "Agency" includes, but is not limited to, any
19 constitutionally or statutorily created state agency, board, bureau,
20 commission, office, authority, institution, public trust in which
21 the state is a beneficiary, interstate commission, or any
22 instrumentality thereof, except:

23 a. the Legislature or any branch, committee, or officer
24 thereof, and

1 b. the courts;

2 4. "Emergency rule" means a rule that is made pursuant to
3 Section 253 of this title;

4 5. "Final rule" or "finally adopted rule" means a rule other
5 than an emergency rule, which has not been published pursuant to
6 Section 255 of this title but is otherwise in compliance with the
7 requirements of the Administrative Procedures Act, and is:

8 a. ~~approved by the Legislature pursuant to Section 308.3~~
9 ~~of this title, provided that any such joint resolution~~
10 ~~becomes law in accordance with Section 11 of Article~~
11 ~~VI of the Oklahoma Constitution,~~

12 b. ~~approved by the Governor pursuant to subsection C of~~
13 ~~Section 308.3 of this title,~~

14 c. approved by a joint resolution pursuant to subsection
15 B of Section 308 of this title, provided that any such
16 resolution becomes law in accordance with Section 11
17 of Article VI of the Oklahoma Constitution, or

18 d. b. disapproved by a joint resolution pursuant to
19 subsection B of Section 308 of this title ~~or Section~~
20 ~~308.3 of this title,~~ which has been vetoed by the
21 Governor in accordance with Section 11 of Article VI
22 of the Oklahoma Constitution and the veto has not been
23 overridden;

1 6. "Final agency order" means an order that includes findings
2 of fact and conclusions of law pursuant to Section 312 of this
3 title, is dispositive of an individual proceeding unless there is a
4 request for rehearing, reopening, or reconsideration pursuant to
5 Section 317 of this title, and which is subject to judicial review;

6 7. "Guidance document" means:

7 a. (1) an agency statement of general applicability that
8 is not a major rule or a nonmajor rule and is
9 designated by an agency official or employee as
10 setting forth an authoritative or official policy
11 or interpretation on a statutory, regulatory, or
12 technical issue. A guidance document may
13 include, but not be limited to, a memorandum,
14 notice, bulletin, directive, letter, or no-action
15 letter, or

16 (2) a federal agency statement of general
17 applicability that is designated by an agency
18 official or employee as setting forth an
19 authoritative or official policy or
20 interpretation on a statutory, regulatory, or
21 technical issue. A guidance document may
22 include, but is not limited to, a memorandum,
23 notice, bulletin, directive, letter, or no-action
24 letter.

1 b. The term guidance document shall be construed broadly
2 to effectuate the purpose and intent of the
3 Administrative Procedures Act and includes any
4 authoritative or official statement or position
5 whether designated by the agency as binding or
6 nonbinding but shall not include:

7 (1) correspondence related to agency organization,
8 procedure, or practice,

9 (2) agency adjudications decided under state or
10 federal law,

11 (3) internal agency correspondence not intended to
12 have a substantial future effect on the behavior
13 of regulated parties, or

14 (4) internal executive branch legal advice or legal
15 opinions addressed to executive branch officials;

16 8. "Hearing examiner" means a person meeting the qualifications
17 specified by Article II of the Administrative Procedures Act and who
18 has been duly appointed by an agency to hold hearings and, as
19 required, render orders or proposed orders;

20 ~~8.~~ 9. "Implementation and compliance costs" means direct costs
21 that are readily ascertainable based upon standard business
22 practices, including, but not limited to, fees, the cost to obtain a
23 license or registration, the cost of equipment required to be
24 installed or used, additional operating costs incurred, the cost of

1 monitoring and reporting, and any other costs to comply with the
2 requirements of the proposed rule;

3 ~~9.~~ 10. "Individual proceeding" means the formal process
4 employed by an agency having jurisdiction by law to resolve issues
5 of law or fact between parties and which results in the exercise of
6 discretion of a judicial nature;

7 ~~10.~~ 11. "License" includes the whole or part of any agency
8 permit, certificate, approval, registration, charter, or similar
9 form of permission required by law;

10 ~~11.~~ 12. "Major rule" means any administrative rule, whether
11 emergency or permanent in nature, that will result in or is likely
12 to result in One Million Dollars (\$1,000,000.00) or more over the
13 initial five-year period in implementation and compliance costs that
14 are reasonably expected to be incurred by or passed along to
15 businesses, state or local government units, and individuals as a
16 result of the proposed rule following the promulgation of such rule;

17 ~~12.~~ 13. "Nonmajor rule" means any rule that is not a major
18 rule;

19 ~~13.~~ 14. "Office" means the Office of the Secretary of State;

20 ~~14.~~ 15. "Order" means all or part of a formal or official
21 decision made by an agency including, but not limited to, final
22 agency orders;

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1 ~~15.~~ 16. "Party" means a person or agency named and
2 participating, or properly seeking and entitled by law to
3 participate, in an individual proceeding;

4 ~~16.~~ 17. "Permanent rule" means a rule that is made pursuant to
5 Section 303 of this title;

6 ~~17.~~ 18. "Person" means any individual, partnership,
7 corporation, association, governmental subdivision, or public or
8 private organization of any character other than an agency;

9 ~~18.~~ 19. "Political subdivision" means a county, city,
10 incorporated town, or school district within this state;

11 ~~19.~~ 20. "Promulgated" means a finally adopted rule which has
12 been filed and published in accordance with the provisions of the
13 Administrative Procedures Act, or an emergency rule or preemptive
14 rule which has been approved by the Governor;

15 ~~20.~~ 21. "Rule" means any agency statement or group of related
16 statements of general applicability and future effect that
17 implements, interprets, or prescribes law or policy, or describes
18 the procedure or practice requirements of the agency. The term rule
19 includes the amendment or revocation of an effective rule but does
20 not include:

- 21 a. the issuance, renewal, denial, suspension or
22 revocation or other sanction of an individual specific
23 license,

b. the approval, disapproval, or prescription of rates.

For purposes of this subparagraph, the term "rates" shall not include fees or charges fixed by an agency for services provided by that agency including, but not limited to, fees charged for licensing, permitting, inspections, or publications,

c. statements and memoranda concerning only the internal management of an agency and not affecting private rights or procedures available to the public,

d. declaratory rulings issued pursuant to Section 307 of this title,

e. orders by an agency, or

f. press releases or "agency news releases", provided such releases are not for the purpose of interpreting, implementing, or prescribing law or agency policy;

~~21.~~ 22. "Rulemaking" means the process employed by an agency for the formulation of a rule;

~~22.~~ 23. "Secretary" means the Secretary of State; and

~~23.~~ 24. "Small business" means a for-profit enterprise consisting of fifty or fewer full-time or part-time employees; ~~and~~

~~24.~~ ~~"Technical legal defect" means an error that would otherwise invalidate an action by a court of law.~~

SECTION 3. AMENDATORY 75 O.S. 2021, Section 250.4a, is amended to read as follows:

1 Section 250.4a. Any agency exempt from all or part of the
2 Administrative Procedures Act pursuant to subsection A of Section
3 250.4 of this title shall maintain and make available for public
4 inspection its exempt rules and all guidance documents at its
5 principal place of business and on any website associated with the
6 agency.

7 SECTION 4. AMENDATORY 75 O.S. 2021, Section 250.9, as
8 amended by Section 1, Chapter 7, O.S.L. 2024 (75 O.S. Supp. 2025,
9 Section 250.9), is amended to read as follows:

10 Section 250.9. A. There is hereby established an Office of
11 Administrative Rules within the Office of the Secretary of State.
12 The Office of Administrative Rules shall have the primary
13 responsibility for publishing "The Oklahoma Register" and the
14 "Oklahoma Administrative Code" and otherwise implementing the
15 provisions of Article I of the Administrative Procedures Act. The
16 Secretary of State shall provide for the adequate staffing of the
17 Office to implement the provisions of this section including but not
18 limited to an editor in chief.

19 B. The Secretary shall cause to be published in electronic
20 form, and may cause to be published in printed form, at the least
21 cost possible to the state, the "Oklahoma Administrative Code" and
22 "The Oklahoma Register". In the event of any discrepancy between
23 the electronic and printed form of the Code or "The Oklahoma
24 Register", the electronic form shall prevail unless it is

1 conclusively shown, by reference to the rulemaking filings made with
2 the Secretary, that the electronic form contains an error in
3 publication.

4 C. Each agency subject to the provisions of Article I and
5 Article II of the Administrative Procedures Act shall electronically
6 submit all guidance documents to the Secretary on a quarterly basis.
7 The Secretary shall publish the guidance documents in an electronic,
8 indexed, searchable form. The published guidance documents shall
9 include the following:

10 1. A notification that the guidance documents lack the full
11 force and effect of law, except as authorized by law or as
12 incorporated into a contract or binding legal decision; and

13 2. Information regarding amendments to or rescission of
14 guidance documents by an agency or federal agency. An original
15 guidance document shall remain on the website for the Office of
16 Administrative Rules, and within fifteen days of an amendment or
17 rescission, the agency shall submit to the Secretary a notice that
18 the document has been amended or rescinded, the date of such action,
19 the reason for the amendment or rescission, and any amended guidance
20 document. The notice shall be published within fifteen (15) days of
21 receipt by the Secretary.

22 SECTION 5. AMENDATORY 75 O.S. 2021, Section 302, is
23 amended to read as follows:
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1 Section 302. A. In addition to other rulemaking requirements
2 imposed by law, each agency which has rulemaking authority, shall:

3 1. Promulgate as a rule a description of the organization of
4 the agency, stating the general course and method of the operations
5 of the agency and the methods whereby the public may obtain
6 information or make submissions or requests;

7 2. Promulgate rules of practice setting forth the nature and
8 requirements of all formal and informal procedures available,
9 including a description of all forms and instructions issued by the
10 agency for use by the public;

11 3. Make available for public inspection all rules, all guidance
12 documents, and all other written statements of policy or
13 interpretations formulated, adopted, promulgated, or used by the
14 agency in the discharge of its functions; and

15 4. Make available for public inspection pursuant to the
16 provisions of the Oklahoma Open Records Act all final orders,
17 decisions, and opinions.

18 B. 1. An agency shall maintain an official rulemaking record
19 for each proposed rule or promulgated rule. The record and
20 materials incorporated by reference shall be available for public
21 inspection.

22 2. The agency rulemaking record shall contain:
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- a. copies of all publications in "The Oklahoma Register" with respect to the rule or the proceeding upon which the rule is based,
- b. copies of any portions of the agency's public rulemaking docket containing entries relating to the rule or the proceeding upon which the rule is based,
- c. all written petitions, requests, submissions, and comments received by the agency and all other written materials considered by the agency in connection with the formulation, proposal, or adoption of the rule or the proceeding upon which the rule is based,
- d. any official transcript of oral presentations made in the proceeding upon which the rule is based or, if not transcribed, any tape recording or stenographic record of those presentations, and any memorandum prepared by a presiding official summarizing the contents of those presentations,
- e. a copy of any regulatory analysis prepared for the proceeding upon which the rule is based,
- f. a copy of the rule and analysis of each such rule filed with the Office pursuant to Section 251 of this title,
- g. all petitions for exceptions to, amendments of, or repeal or suspension of, the rule,

- 1 h. a copy of the rule impact statement, if made, and
2 i. such other information concerning such rules as may be
3 determined necessary by the agency.

4 3. Upon judicial review, the record required by this section
5 constitutes the official agency rulemaking record with respect to a
6 rule. Except as otherwise required by a provision of law, the
7 agency rulemaking record need not constitute the exclusive basis for
8 agency action on that rule or for judicial review thereof.

9 C. 1. By December 31, 2002, each agency that issues precedent-
10 setting orders shall maintain and index all such orders that the
11 agency intends to rely upon as precedent. The index and the orders
12 shall be available for public inspection and copying in the main
13 office and each regional or district office of the agency. The
14 orders shall be indexed by subject.

15 2. After December 31, 2002, an order shall not be relied upon
16 as precedent by an agency to the detriment of any person until it
17 has been made available for public inspection and indexed in the
18 manner described in this subsection.

19 3. An agency shall consistently apply rules to each person
20 subject to the jurisdiction of the agency regarding issuance of
21 orders.

22 D. An agency shall not by internal policy, memorandum, or other
23 form of action not otherwise authorized by the Administrative
24 Procedures Act:

1 1. Amend, interpret, implement, or repeal a statute or a rule;

2 2. Expand upon or limit a statute or a rule; and

3 3. Except as authorized by the United States Constitution ~~of~~
4 ~~the United States~~, the Oklahoma Constitution, or a statute, expand
5 or limit a right guaranteed by the United States Constitution ~~of the~~
6 ~~United States~~, the Oklahoma Constitution, a statute, or a rule.

7 E. Any agency memorandum, internal policy, or other form of
8 action violative of this section or the spirit thereof is null,
9 void, and unenforceable.

10 F. This section shall not be construed to prohibit an agency
11 issuing an opinion or administrative decision which is authorized by
12 statute provided that, unless such opinion or administrative
13 decision is issued pursuant to the procedures required pursuant to
14 the Administrative Procedures Act, such decision or opinion shall
15 not have the force and effect of law.

16 SECTION 6. This act shall become effective November 1, 2026.

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18 COMMITTEE REPORT BY: COMMITTEE ON ADMINISTRATIVE RULES, dated
19 04/08/2026 - DO PASS.
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